Ethical Frameworks

Course: Professional Practices

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Why Frameworks Matter

- Provides structured thinking for complex dilemmas
- Helps justify decisions to stakeholders
- Offers different "lenses" to view problems
- Builds professional credibility
- Prepares you for inevitable ethical challenges

CONSEQUENTIALISM

- "THE ENDS JUSTIFY THE MEANS”
- An action is RIGHT if it produces the BEST overall consequences; WRONG if it leads to worse consequences.
- Jeremy Bentham (1748-1832) - "Father of Utilitarianism"
- Utilitarianism: Focused on "greatest happiness for the greatest number"

CONSEQUENTIALISM (Cont'd)

Core Principles:

- **Focus on Outcomes:** The consequences matter, not motives
- **Maximize Good Results**: Choose actions that produce the most benefit
- **Minimize Harm**: Reduce suffering and negative impacts
- **Impartiality**: Everyone's happiness counts equally
- **Aggregation**: Sum up total happiness vs. unhappiness for all affected

Case Study 1: Self-Driving Car Programming

The Trolley Problem in Code: If an unavoidable crash occurs, should your algorithm:

- Option A: Swerve to hit 1 elderly pedestrian to save 5 children?
- Option B: Stay course and hit the 5 children?
- Option C: Kill the passenger to save 5 pedestrians?

Utilitarian Analysis

Step 1: Count all lives affected: 1 vs. 5

Step 2: Assign equal value to each life

Step 3: Calculate net utility

- Swerve: (5 lives saved × +100) - (1 life lost × -100) = +400
- Stay course: (1 life saved × +100) - (5 lives lost × -100) = -400

Step 4: Solution → Swerve to minimize total deaths

DEONTOLOGY

- An action is RIGHT if it follows universal moral rules and duties; WRONG if it violates these rules, *regardless of consequences*. Also called duty-based ethics.
- Key Figure: Immanuel Kant (1724-1804)
    - Developed the "Categorical Imperative”
    - Emphasized duty, rights, and universal principles
    - Argued that consequences alone cannot determine morality

Core Kantian Principles

- **The Categorical Imperative (Universal Law Formulation):**
  - "Act only according to that maxim whereby you can at the same time will that it should become a universal law.”
  - Translation: Would you want EVERYONE to act this way, ALWAYS?
- **Humanity Formula:**
  - "Act in such a way that you treat humanity, whether in your own person or in that of another, never merely as a means to an end but always as an end in itself."
  - Translation: Don't use people; respect their inherent dignity and autonomy.

THE CATEGORICAL IMPERATIVE: STEP-BY-STEP

STEP 1: Formulate Your Maxim

- "I will [ACTION] in [SITUATION] for [PURPOSE]"
- Example: "I will collect user data without consent to improve company profits”

STEP 2: Universalize It

- What if everyone did this, always?
- Example: "Everyone collects user data without consent, always"

THE CATEGORICAL IMPERATIVE: STEP-BY-STEP

STEP 3: Test for Logical Consistency

- Does universalizing this create a contradiction?
- Example: If everyone collected data without consent, the concept of "consent" becomes meaningless. Privacy as a concept collapses. This creates a logical contradiction.

STEP 4: Test for Practical Consistency

- Could you rationally will to live in such a world?
- Example: Would YOU want to live in a world where your own data is collected without your consent? If not, you're treating others as means (tools for profit), not ends (autonomous agents with dignity).

THE CATEGORICAL IMPERATIVE: STEP-BY-STEP

STEP 5: Verdict

- Universal law test fails (logical contradiction) → MUST NOT do this
- Practical test fails (rational inconsistency) → SHOULD do the opposite

Visualization:

Your Action → Universal Law → Does it Self-Destruct? → Verdict

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Lie to users → Everyone lies → Trust impossible → WRONG

Help users → Everyone helps → Better society → RIGHT

VIRTUE ETHICS – "BE A GOOD PERSON"

- An action is RIGHT if it is what a virtuous person would do, i.e., someone with qualities of character like wisdom, courage, honesty, and justice.
- Emphasis on character development over rules or consequences.
- Virtue involves knowing what to do, when, and how. → Requires experience and judgment.
- Virtues are developed through practice and repetition
  - "We are what we repeatedly do. Excellence is not an act, but a habit".
- The Golden Mean: Virtue is the balance between excess and deficiency
  - Not mathematical middle, but appropriate response to situation

Key Virtues in Tech

Virtues	Examples
Honesty (Truthfulness)	Admitting "I don't understand this legacy code" rather than pretending
Intellectual Courage	Pushing back against unrealistic deadlines that compromise security
Humility	Accepting code review feedback gracefully, saying "thank you" for corrections
Professional Excellence	Writing clean, maintainable code even when shortcuts exist
Justice/Fairness	Designing software that accommodates users with disabilities by default
Practical Wisdom	Knowing when to prioritize security over feature delivery

SOCIAL CONTRACT THEORY

Moral and political obligations arise from an agreement among rational individuals to form a society with rules that benefit everyone. We follow rules because we (implicitly or explicitly) agreed to them.

Core Principles:

- Mutual Agreement: Society forms based on rational agreement among individuals
- Reciprocal Duties: We have obligations to society in exchange for protection
- Rights Correspond to Duties: Your rights depend on others' duties to respect them
- Legitimacy Through Consent: Authority derives from consent of the governed

NEGATIVE VS. POSITIVE RIGHTS

Understanding Two Types of Rights

NEGATIVE RIGHTS

Rights that require others NOT to interfere

- Don't require resources, just non-interference
- "Leave me alone" rights
- Government/others must refrain from certain actions

NEGATIVE RIGHTS

Tech Examples:

- ✓ Right to **privacy** (freedom from surveillance)
- ✓ Right to **not have data collected** without consent
- ✓ Right to **not be discriminated against** by algorithms
- ✓ Right to **anonymous speech** online
- ✓ Right to **not be tracked** across websites
- ✓ Right to **not be hacked** or have systems violated

NEGATIVE VS. POSITIVE RIGHTS

Understanding Two Types of Rights

POSITIVE RIGHTS

Rights that require someone to provide something

- Require resources and active support
- "Give me access" rights
- Government/society must take action to provide

COMPARISON TABLE

Aspect	Negative Rights	Positive Rights
Action Required	Non-interference	Provision of resources
Cost	Low (don't do something)	High (provide something)
Examples in Tech	Privacy, no surveillance	Internet access, education
Who's Responsible?	Everyone must respect	Government/society must provide
Controversy Level	Generally accepted	Hotly debated

KEY TAKEAWAYS

- No single framework is perfect, but together they provide comprehensive ethical analysis.
- Apply 2-3 frameworks to every major decision
- When frameworks agree → strong ethical justification
- When frameworks disagree → reveals complexity worth exploring
- Disagreement doesn't mean "anything goes”; it means careful analysis needed
- Explain which framework you're prioritizing and why
- Remain humble about limitations